

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

September 13, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:02 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne (arriving at 6:04 pm), Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

PRESENTATION OF DRUG RECOGNITION EXPERT CENTENNIAL AWARD TO POLICE CHIEF BRIAN KOZAK FOR HIS CONTRIBUTION TOWARD COMBATING DRUG IMPAIRED DRIVING, AND COMMITMENT TO HIGHWAY SAFETY. Mayor Kaysen advised the individual who would be presenting the award had not yet arrived (traveling from out of state) and, following query with no objection raised by City Council members, stated the presentation would be deferred to a later time in the meeting. Following the next presentation on the agenda, Robin Roth, Colorado Department of Transportation, State Coordinator for Colorado's Drug Recognition Expert (DRE) program, awarded Chief Kozak with the 2009 Drug Recognition Expert Centennial Award. She briefly explained the award and noted Chief Kozak was receiving it for his significant contribution to the DRE program during his tenure as Avon Police Chief, Eagle County, Colorado. Also commenting on Chief Kozak's contributions to the program were Lt. Jon Anderle, Laramie Police Department, State Coordinator for the DRE program and chair of the Governor's Leadership Team to Prevent Impaired Driving, and Dee West Peterson, State of Wyoming Department of Transportation, Highway Safety Office. Chief Kozak stated he was honored to receive the award and briefly mentioned future programs he is working on for continued highway safety efforts. Congratulations were expressed to Chief Kozak.

PRESENTATION OF CERTIFICATES TO CITY OF CHEYENNE LANDFILL AND TRANSFER STATION BY THE WYOMING SOLID WASTE & RECYCLING ASSOCIATION FOR OUTSTANDING MANAGEMENT AND EXEMPLARY HANDLING OF SOLID WASTE MATERIAL. Jim Elias, Public Works Director, presented certificates of recognition for outstanding management and for demonstrating daily exemplary handling of solid waste materials at the City Landfill and Transfer Station to Monty Landers, Landfill Manager, and Denis Pino, Solid Waste Director and Transfer Station Operations Manager. Mr. Elias stated Mr. Landers and Mr. Pino are recognized state-wide as experts in the solid waste field and are frequently asked to provide their opinions and suggestions on operations. Mayor Kaysen expressed appreciation to the recipients for their service and commitment to the City of Cheyenne.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and

support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 23, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on September 7, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body.

Mayor Kaysen opened a public hearing for the purpose of receiving comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Lambousis Revocable Trust d/b/a The Mayflower, 112 W. 17th St., Cheyenne, WY. (License currently held by Bedrock Seafood, Inc. d/b/a The Mayflower, 112 W. 17th St., Cheyenne, WY.) Upon inquiry, John Lambousis, applicant, provided information on the Mayflower's recent business operations, explained the previous licensee was no longer operating the business and that the application is a request to transfer the license back to him. He advised he is hoping to find someone to whom he can lease the establishment, or he may attempt to sell/transfer. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the item to Finance Committee.

“An Ordinance repealing Chapter 5.72, Public Transport, in its entirety and re-creating Chapter 5.72, Public Transportation, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code.” Joe Elkins, owner of B.C. Cab, provided written comments (on file with office of City Clerk) on the proposed ordinance and reviewed areas of concern, including the lack of an option for a unique company color and lettering scheme for taxicabs, as opposed to just a logo, and enforcement of violation of laws. He cited examples of taxicab vehicle violations involving non-transparency of side and rear windows due to lettering which impairs driver visibility, and cell phone usage contrary to city ordinance. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Ms. Broyles. Mr. Brown moved to amend by substitute ordinance, seconded by Ms. Broyles. Upon inquiry, City Attorney Dan White explained the changes contained in the proposed substitute (dated 9/9/2010 by the attorney), stating changes were based upon discussion and comments made at previous Council and Finance Committee meetings. Upon inquiry, City Clerk Carol Intlekofer stated there are currently less than 12 public transportation companies licensed with the City, which does not include horse drawn carriages or pedicab businesses. Comments followed regarding cab company's identification of fleet vehicles with a specific logo vs. a color scheme, or both. Upon inquiry, Mr. White advised if a cab company uses a taximeter it must be visible and properly calibrated but the ordinance does not require use of a taximeter; that fares for services must be posted somewhere in the cab where it is visible, and that the ordinance does not regulate rates that may be assessed for services. Further comments followed regarding the purpose of the Police Chief's approval of a company's logo for vehicles with Police Chief Brian

Kozak stating his belief that approval ensures that taxicabs won't resemble police vehicle markings. During comments on including a color scheme option for taxicab vehicles, Mr. White indicated deletion of a color scheme option from the proposed substitute ordinance was based upon comment made at a previous meeting. Upon inquiry regarding ordinance enforcement, Chief Kozak stated he plans to have a member of the police department designated as a coordinator to monitor compliance with requirements of the new ordinance, and stated officer awareness of ordinance provisions will be provided. Motion to amend carried. Voting "yes" – all members of the governing body. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body. (#3905)

"An Ordinance amending Section 10.08.010, State Law adopted, of Chapter 10.08, State Traffic Laws Adopted, of Title 10, Vehicles and Traffic, of Cheyenne City Code pertaining to Ignition Interlock Licenses." Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance adopting water rates to be charged to users of the Cheyenne water system for the purpose of mineral exploration outside of the City in Laramie County and other portions of southeast Wyoming." Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne city map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to HI Heavy Industrial District for Lots 8 & 9, Block 1, Cheyenne Business Parkway, First Filing, Cheyenne, Wyoming (located at the northeast corner of the intersection of Progress Circle and Campstool Road)" -- referred to Public Services Committee.

[CA] "A Resolution designating the Director of Purchasing as Agent for the City of Cheyenne for the purpose of organizing and holding a Surplus Municipal Property Auction at a time convenient for the City." Motion (per Consent Agenda) carried. (#5238)

"A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Woodhaven Subdivision, a replat of Lots 1 & 2, Block One, Farson Addition and Lots 1 through 14 inclusive, Dry Creek Twin Homes Subdivision, Cheyenne, Wyoming (located between Wills Road and McCann Avenue, south of the Dry Creek Channel)." Mr Spiker declared a conflict of interest and vacated Council Chambers. Reporting for Public Services Committee, Ms. Ash moved to adopt with staff recommendation #2, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. (#5239)

[CA] "A Resolution allowing the Governing Body to utilize funds in the Annexation Revolving Loan Fund to facilitate extension of infrastructure to support economic development efforts in Cheyenne." Motion (per Consent Agenda) carried. (#5240)

[CA] "A Resolution approving Temporary User Water Service Agreements with A & W Water Service, Inc., and Western Environmental Services, Inc. for the purpose of drilling wells for the

exploration and development of oil wells and authorizing the Board of Public Utilities to approve future applications for Temporary User Water Service Agreements.” Motion (per Consent Agenda) carried. (#5241)

[CA] A Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Coyote Flats, situated in the SW¼ of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located north of and adjacent to E. Pershing Boulevard, east of Whitney Road)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts; Tract 2, Hermann Meadows Subdivision; Lot 2 and a portion of Lot 1, Block 1, Ley Subdivision, Laramie County, Wyoming (located between E. Fox Farm and E. Jefferson Roads, east of S. Greeley Highway)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution authorizing acceptance of the Core Prevention Grant Funds by the City of Cheyenne Police Department on behalf of the Governing Body of the City of Cheyenne for substance abuse and suicide prevention programming” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] Preliminary Plat for The Pointe, Fifth Filing, a replat of Lots 13-25, Block 13; Lots 27-69, Block 12; Lots 1-35, Block 16; Lots 1-22, Block 17; Lots 1-27, Block 18; Lots 1-32, Block 19; Lots 1-19, Block 20 and Lot 1, Block 21, of The Pointe; and Lots 37-38 and 71, Block 14, The Pointe, Second Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of East Four Mile and Powderhouse Roads) -- referred to Public Services Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Granite Peak Development LLC to facilitate extension of infrastructure to support economic development efforts in Cheyenne. Motion (per Consent Agenda) carried. (#5588)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for family counseling for school referred students/families -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age children with disabilities on Individual Education Plans -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and State of Wyoming for parking services in the Cox Parking Structure -- referred to Finance Committee.

[CA] Amendment #1 to Energy Performance Contract #5516 between the City of Cheyenne and Long Building Technologies, Inc. to remove lamp replacement at Lions, Pioneer, Brimmer, Powers and Dutcher Ball Fields and replace with lighting fixture replacement at Brimmer Fields #1 and #2 (Department of Energy and American Recovery and Reinvestment Act (ARRA) grants). Motion (per Consent Agenda) carried. (#5516)

[CA] Amendment #2 to Energy Performance Contract #5516 between the City of Cheyenne and Long Building Technologies, Inc. to add lighting fixture replacement at Brimmer Field #3

(2007-2010 1% Sales Tax and athletic players fees). Motion (per Consent Agenda) carried. (#5516)

[CA] Contract Modification #1 to Contract #5575 between the City of Cheyenne and JTL Group d/b/a Knife River for additional quantities of asphalt and flagging hours for Dell Range Boulevard resurfacing project (2007-2010 1% Optional Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification # 4 to Contract #5321 between the City of Cheyenne and Recco, Inc. d/b/a Five-R Co., for additional work and amenities at the Cheyenne Youth Activity & Community Center, located in David R. Romero South Cheyenne Community Park (Community Facility Fees) -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-11 for furnishing one new loader/backhoe for the City of Cheyenne Street & Alley Division (2007-2010 1% Sales Tax – Storm Sewer Maintenance Fund). Motion (per Consent Agenda) carried (amount not to exceed \$90,738.00, Titan Machinery, Cheyenne).

[CA] Consideration of Bid #M-1-11 for furnishing bulk "Ice Control Product" to the City of Cheyenne Public Works Department for use on city streets (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Community Facilities Fees Report for Fiscal Year ending June 30, 2010. Motion (per Consent Agenda) carried.

Re-appointments of Dean Meyer, Scott Thomas and Mary Bienz to the Public Transit Advisory Board. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of James A. Martin as Chief of the Fire and Rescue Department for the City of Cheyenne. Mr. Spiker moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment). Mayor Kaysen advised the oath of office for Chief Martin would be administered at 8:30 a.m. on Sept. 14, 2010 in City Council Chambers and the public was invited to attend.

Announcement was made of a Public Hearing to be held September 27, 2010 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in the SW1/4 of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (generally located north of Pershing Boulevard, between Whitney Road and Christensen Road).

Announcement was made of a Public Hearing to be held September 27, 2010 at 6:00 p.m. in City Council Chambers for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for Maverik Inc. d/b/a Maverik, to be located at Yellowstone Road and Gardenia Drive, Cheyenne, WY. (License currently held by Cheyenne 28, LLC d/b/a C.B. & Potts, 1650 Dell Range Boulevard, Cheyenne, WY.)

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:48 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
September 25, 2010